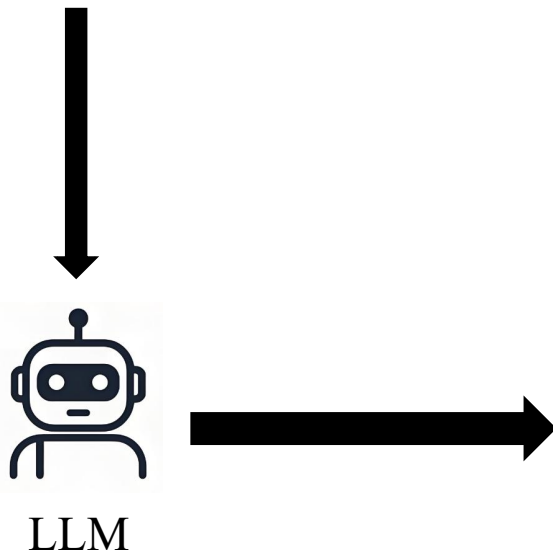


On May 17, 2010, at around 5 p.m., Li Baoqing (handled separately) and defendants Li Aiqun and Zhang Feng (both handled separately) forcibly took Gao XX to an inn near Xiaoying Village, Anyang City, on the pretext that Gao had molested Li Baoqing's niece's wife. They assaulted and detained Gao until around 3 p.m. on May 18, coercing him to pay 2,000 yuan in cash and write an IOU for 3,000 yuan. It was later found that the defendants compensated the victim 2,000 yuan for economic losses and returned 2,000 yuan in ill-gotten gains.



Procedure

On May 17, 2010, around 5 p.m., the defendant Li Aiqun, together with Li Baoqing (handled separately) and Zhang Feng (handled separately), forcibly took the victim Gao XX to an inn near Xiaoying Village, Anyang City, on the pretext that Gao had molested Li Baoqing's niece's wife. They used violence such as assault and detention to coerce Gao into immediately handing over 2,000 yuan in cash and forcing him to write an IOU for 3,000 yuan...

Fact

At 5:00 p.m. on May 17, 2010, after premeditation, the defendant Li Aiqun, along with Li Baoqing and Zhang Feng, forcibly took the victim Gao XX to an inn room near Xiaoying Village, Anyang City. The three successively assaulted Gao XX and restricted his personal freedom until around 3:00 p.m. the next day. During this period, Li Aiqun and others threatened Gao XX with violence, forcing him to hand over 2,000 yuan in cash he carried and compelling him to issue an IOU for 3,000 yuan. It is established that Li Aiqun directly participated in assaulting the victim and extorting property, as a principal offender in the joint crime....

Resoning

1. His actions did not constitute robbery, asserting that the case involved illegal detention stemming from a civil dispute, lacking the subjective intent to illegally possess property. 2. He played a relatively minor role, having been invited by Li Baoqing to participate and acting as a secondary party in the joint crime. 3. He actively compensated the victim for losses and returned ill-gotten gains after the incident, demonstrating repentance, and requested a lenient sentence.

Decision

The defendant Li Aiqun is convicted of robbery. In accordance with Articles 263, 25(1), and 67(3) of the Criminal Law of the People's Republic of China, he is sentenced to four years' imprisonment and a fine of 3,000 yuan. The 2,000 yuan seized shall be returned to the victim Gao XX.",

Tail

Presiding Judge, People's Assessor, People's Assessor
January 3, 2011
Court Clerk
Attached: Relevant legal provisions
Article 263 of the Criminal Law of the People's Republic of China ...

